

IN THE DISTRICT COURT OF AMSTERDAM

COMMERCIAL CHAMBER

Case No. C/13/2024/01882 | Ref: VA/LIT/2024/0093

STATEMENT OF CLAIM

CLAIMANT: ASML Holding NV, a public limited company incorporated under the laws of the Netherlands (KvK: 17070022), having its registered office at De Run 6501, 5504 DR Veldhoven (“ASML” or “Claimant”).

DEFENDANT: Precision Components GmbH, a company incorporated under the laws of Germany (HRB 78432), having its registered office at Industriestrasse 47, 80339 Munich, Germany (“Defendant”).

I. INTRODUCTION AND RELIEF SOUGHT

- This action concerns the Defendant's material breach of a Supply and Manufacturing Agreement dated 12 September 2022 (the “**Agreement**”) whereby the Defendant was engaged to supply precision optical components for ASML's EUV lithography systems.
- By reason of the Defendant's breaches, ASML has suffered loss and damage quantified at **EUR 4,200,000** (four million two hundred thousand euros), comprising direct losses of EUR 2,700,000 and consequential losses of EUR 1,500,000.
- ASML seeks judgment against the Defendant for:
 - damages in the sum of EUR 4,200,000 or such other sum as the Court shall determine;
 - interest pursuant to Article 6:119a of the Dutch Civil Code (BW);
 - costs of these proceedings; and
 - such further or other relief as the Court considers just.

II. FACTUAL BACKGROUND

- On 12 September 2022, ASML and the Defendant entered into the Agreement for the supply of precision-ground silicon carbide mirror substrates (“**Components**”) for integration into ASML's NXE:3600D EUV platforms.
- The Agreement required the Defendant to deliver Components meeting the dimensional tolerances specified in Schedule A thereto, with delivery in quarterly batches of no fewer than forty (40) units.
- The Agreement did not provide for automatic renewal. It was fixed for a term of thirty-six (36) months expiring on 11 September 2025.

7. Between Q1 2024 and Q3 2024, the Defendant delivered Components with surface flatness deviations exceeding the contractual tolerance of ± 0.3 nm RMS. ASML's quality control inspections documented deviations of between 1.2 nm and 2.8 nm RMS.
8. ASML notified the Defendant of the defects by letter dated 14 May 2024 and issued a formal cure notice on 28 May 2024, affording thirty (30) days to remedy. The Defendant failed to deliver conforming Components within the cure period.

III. LEGAL BASIS

9. The Defendant's delivery of non-conforming Components constitutes a non-conforming performance (*niet-conforme prestatie*) within the meaning of Article 7:17 of the Dutch Civil Code (BW).
10. Pursuant to Article 6:74 BW, a party that fails to perform an obligation is liable to compensate the other party for the loss arising therefrom, provided the failure is attributable to the non-performing party.
11. The Defendant's failure to deliver conforming Components is attributable to deficiencies in its manufacturing quality management system, which is not an event of force majeure.
12. **Liability Structure.** The Agreement contains no general limitation of liability clause. Clause 18 of the Agreement provides a specific cap of EUR 1,000,000 on liability for damage to tooling, but this cap does not apply to the losses claimed herein, which relate to production downtime and lost revenues. Accordingly, the Defendant's liability for the losses claimed herein is uncapped.
13. ASML is entitled to recover the full quantum of its loss as set out in Section IV below.

IV. QUANTIFICATION OF LOSS

Head of Loss	Basis	Amount (EUR)
Replacement sourcing premium	Emergency procurement, alternative supply	980,000
Production line downtime	21 days x EUR 85,714/day	1,800,000
Quality re-inspection costs	ASML internal cost allocation	220,000
Customer delay penalties	Contractual penalties paid to OEM customers	700,000
Consequential lost margin	Q3 2024 revenue shortfall (expert report)	500,000
	Total	4,200,000

V. PROCEDURAL MATTERS

14. The Agreement designates the District Court of Amsterdam (Rechtbank Amsterdam) as the exclusive jurisdiction, conferring jurisdiction on this Court.
15. The applicable substantive law is Dutch law by express choice of the Parties pursuant to Article 3 of Regulation (EC) No 593/2008 (Rome I).
16. ASML reserves the right to amend this Statement of Claim as further facts come to light and expert evidence is received.

Respectfully submitted,

Vandermeer & Associates NV

Attorneys for the Claimant

Herengracht 182, 1016 BR Amsterdam

Date: 3 June 2024